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A Hard Pass Holders, 2014 to 2024

As we discuss in the manuscript, the Supreme Court issues approximately 25 "hard passes" to reporters each term. Journalists with hard passes receive special privileges, specifically a guaranteed seat in the courtroom during oral argument, working space in the Supreme Court's building, and access to the Court outside of normal business hours. According to the Court's Public Information Office, "the PIO has traditionally reserved hard passes for full-time professional journalists employed by media organizations that have records of substantial and original news coverage of the Court and a demonstrated need for regular access to the Court's press facilities."[1] The list below shows all hard pass holders between 2014 and 2024, as provided by Supreme Court Public Information Office.

1. ABC News (2015-Present)
    - Audrey Taylor (2015-2018)
    - Devin Dwyer (2019-Present)
2. Associated Press (2014-Present)
    - Sam Hananel (2014-2015)
    - Mark Sherman (2014-Present)
    - Jessica Gresko (2017-2024)
    - Lindsay Whiehurt (2023-Present)
3. Agence France-Presse (2014)
    - Chantal Valery (2014)
4. Bloomberg Business News (2014-Present)
    - Greg Stohr (2014-Present)
5. BNA / Bloomberg Industry Group (2014-Present)
    - Kimberly Robinson (2014-Present)
6. Buzzfeed News (2016-2017)
    - Chris Geidner (2016-2017)
7. CBS News (2014-Present)
    - Jan Crawford (2014-Present)

[1] https://tinyurl.com/ms72v3xh

8. CBS Radio (2014-2015)
    - Barry Bagnato (2014-2015)
9. CNN (2014-Present)
    - Ariane de Vogue (2014-2022)
    - Joan Biskupic (2021-Present)
    - John Fritze (2023-Present)
10. CQ Press (2014-Present)
    - Ken Jost (2014-Present)
11. C-SPAN (2014-2016, 2018-Present)
    - Tanya Chattman (2014-2016)
    - Nicole Nihn (2018-2023)
    - Michael Greenan (2024-Present)
12. Down Jones Newswire (2014-2022)
    - Brent Kendall (2014-2022)
13. Education Week (2014-Present)
    - Mark Walsh (2014-Present)
14. Fox News (2014-Present)
    - Shannon Bream (2014-Present)
15. Howe on the Court (2017-Present)
    - Amy Howe (2017-Present)
16. Los Angeles Times (2014-Present)
    - David Savage (2014-Present)
17. Lyle Denniston Law News (2014-2015)
    - Lyle Denniston (2014-2015)
18. McClatchy Newspapers (2014-2015)
    - Michael Doyle (2014-2015)

19. NBC News (2014-Present
    - Pete Williams (2014-2022)
    - Lawrence Hurley (2023-Presence)
20. National Law Journal (2014-Present)
    - Tony Mauro (2014-2018)
    - Marcia Coyle (2014-2022)
    - Jimmy Hoover (2023-Present)
21. National Public Radio (2014-Present)
    - Nina Totenberg (2014-Present)
22. New York Times (2014-Present)
    - Adam Liptak (2014-Present)
23. PBS News Hour (2023-Present)
    - Marcia Coyle (2023-Present)
24. Reuters
    - Lawrence Hurley (2014-2021)
    - Joan Biskupic (2015)
    - Andrew Chung (2017-Present)
    - John Kruzel (2023-Present)
25. USA Today
    - Richard Wolf (2014-2020)
    - John Fritze (2021-2022)
    - Maureen Groppe (2023-Present)
26. Wall Street Journal (2014-Present)
    - Jess Bravin (2014-Present)
27. Washington Post (2014-Present)
    - Robert Barnes (2014-2022)
    - Ann Marimow (2023-Present)

B Coding Procedure for Updating the CSI

To collect data on print coverage of the Court's work, we followed the procedures outlined in Collins and Cooper's (2012) creation of the Case Salience Index (CSI). Collins and Cooper specifically examine decision coverage in the day following the decision's release. We used the ProQuest News and Newspapers Database, which includes all publications from the four papers used in the CSI – *The New York Times*, *The Washington Post*, *Chicago Tribune*, and *Los Angeles Times*. The database's Advanced Search function allowed us to run individual date restricted searches for each case from each term. For each case, we entered a specific date range that narrowed the database's publication search around the day the decision was announced.

For each case in our dataset, we typed in "[INSERT PETITIONER NAME IN CASE] v. [INSERT RESPONDENT'S NAME IN CASE]" and "[INSERT PETITIONER NAME IN CASE] vs. [INSERT RESPONDENT'S NAME IN CASE]" because *The New York Times*, *The Washington Post*, and *Chicago Tribune* all use "v." in between the petitioner and respondent's names, but the *Los Angeles Times* uses "vs." instead. We also search "[INSERT PETITIONER NAME IN CASE] [INSERT RESPONDENT'S NAME IN CASE] Supreme Court" because the papers would sometimes discuss a decision without formally mentioning the case's name.

For cases that include an acronym, such as the Federal Election Commission (FEC) or Internal Revenue Service (IRS), or an abbreviation for terms like Incorporated (Inc.), Company (Co.), Corporation (Corp.), Limited (Ltd.), Limited Partnership (LP.) or Limited Liability Company (LLC.), we search both the condensed and expanded versions of the acronym and abbreviation due to the variation in whether the papers would use the full abbreviation or acronym. For example, for a case such as *Federal Election Commission v. Ted Cruz for Senate* (596 U.S. _____ 2022) we searched "*Federal Election Commission v. Ted Cruz for Senate*", and "*FEC v. Ted Cruz for Senate*", and "[INSERT PETITIONER NAME IN CASE] [INSERT RESPONDENT'S NAME IN CASE] Supreme Court" for both the expanded and condensed version of the acronym, and the versions of these searches with "vs." instead of "v." to account for the *Los Angeles Times*' preference of case names.

For cases such as *Romag Fasteners, Inc. v. Fossil, Inc.* (590 U.S. _____ 2020), we searched "*Romag Fasteners, Inc. v. Fossil, Inc.*", and "*Romag Fasteners, Incorporated v. Fossil*, Incorporated", and "[INSERT PETITIONER NAME IN CASE] [INSERT RESPONDENT'S NAME IN CASE] Supreme Court" for both the expanded and condensed version of the abbreviation, and the versions of these searches with "vs." instead of "v." to account for the *Los Angeles Times*' preference of case names. ProQuest allows a user to execute up to ten individual searches at once by denoting each search term with "OR" in between it. This tells ProQuest to search for each term individually rather than as associated terms (although the user may accomplish this by denoting each search term with "AND" in between them).

If the search returned results for one of the four newspapers, we read the article to ensure it was actually about the Court. Reading the article was a necessary step of the coding process because, despite our specific search terms, ProQuest would sometimes return results unrelated to the Court. For example, searching for a case such as *Johnson v. Guzman Chavez* (594 U.S. _____ 2021), the common name "Johnson" in the case name might trigger ProQuest to produce unrelated articles, obituaries, or sports reports about someone whose

name is also "Johnson." Once we determined that the newspaper articles ProQuest returned were about the Court, we recorded both the paper it appeared in and the page number that contained the article. Per the coding procedure in Collins and Cooper (2012), we coded each case as "2" if it appeared on the front page – which is denoted as "A1" in The New York Times, The Washington Post, and Los Angeles Times, and "Page 1" in the Chicago Tribune – "1" if the case appeared anywhere in the paper that was not front page, and "0" if the case did not appear in the paper at all.

To ensure we coded the same way the authors did, we also used their process to code the 2010 and 2011 terms and compared our findings with theirs. Of the 152 orally-argued cases the Court heard in that time period, our coding matched Collins and Cooper's 78% of the time (118 cases). We found more coverage than Collins and Cooper did in 15% of cases (23 cases), and failed to find the same level of coverage in 7% of cases (11 cases). Given advances in PDF-searching software since the authors collected their data in the late aughts, however, we are not surprised we found more coverage than they did.

C Coverage by Issue Area and Decision Direction

Given the current media landscape, it is possible that different outlets are covering different cases based on the ideological leanings of the outlet. To examine this further, we selected two print and two broadcast media outlets at either end of the ideological spectrum. The *New York Times* and MSNBC to represent the left and the *Wall Street Journal* and Fox to represent the right.

First, in Figure A1, we use the Supreme Court Database to examine how each of these outlets covered cases based on their issue area (Spaeth et al. 2022). The plot includes the most reported on issues: criminal procedure, civil rights, First Amendment, economic activity, and judicial power as indicated by the different symbols.[2] A pattern that emerges here is that in 2019 there was more heterogeneity across the coverage of different issue areas. In 2020 and 2021 the amount of coverage of each issue is much closer. Next, we find that across these four outlets, the patters of which issue areas are reported on each term are consistent. For example, the same seven criminal procedure (square) cases were reported on by MSNBC, the *New York Times*, and the *Wall Street Journal* in 2019. Fox reported on eight. In 2020 all four outlets reported on the same 11 cases and in 2021 most outlets covered 13 cases and the *New York Times* covered 14. This variation of one case more or less is similar across most of the other issue areas. An exception to this is civil rights in 2019 when Fox and *The New York Times* reported on an additional four and six cases respectively.

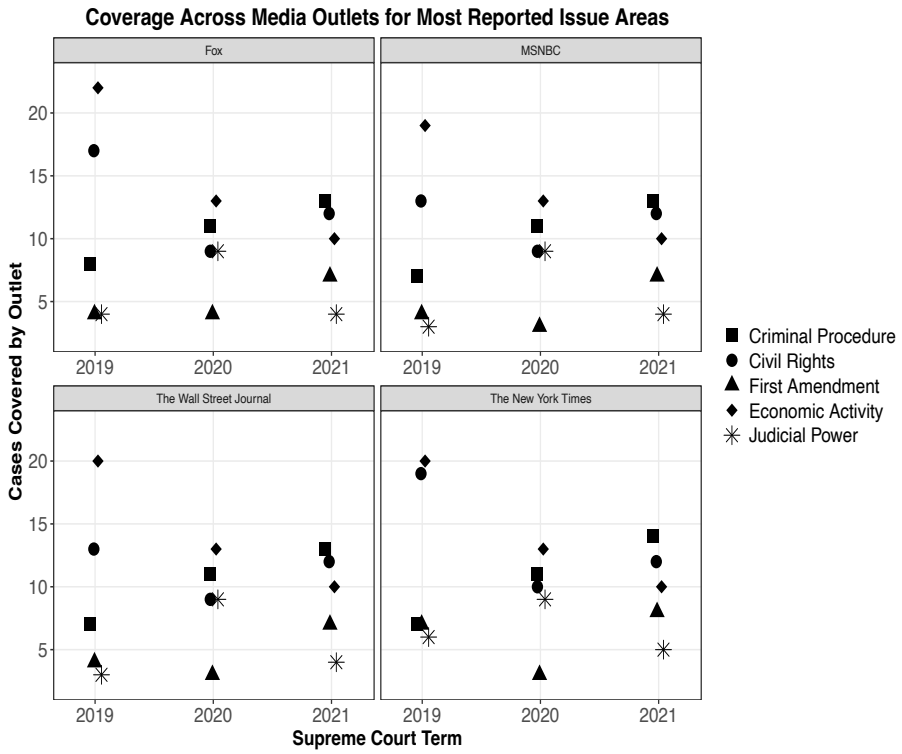

Figure A1: Comparisons in the types of cases covered by issue area across four media outlets.

[2] All other issue areas receive coverage on two or fewer cases per year and were excluded to ease interpretation of the graph.

Another way to examine if the coverage differs across outlet based on ideological leaning is to consider if the outcome of the case influences their coverage. That is, do they report more on their wins or losses? Similar to issue are, this is consistent across decision direction, conservative (square), liberal (circle), and those more difficult to identify (triangle) Spaeth et al. (2022). Given these findings, future work should consider collecting data on the content of the reporting.

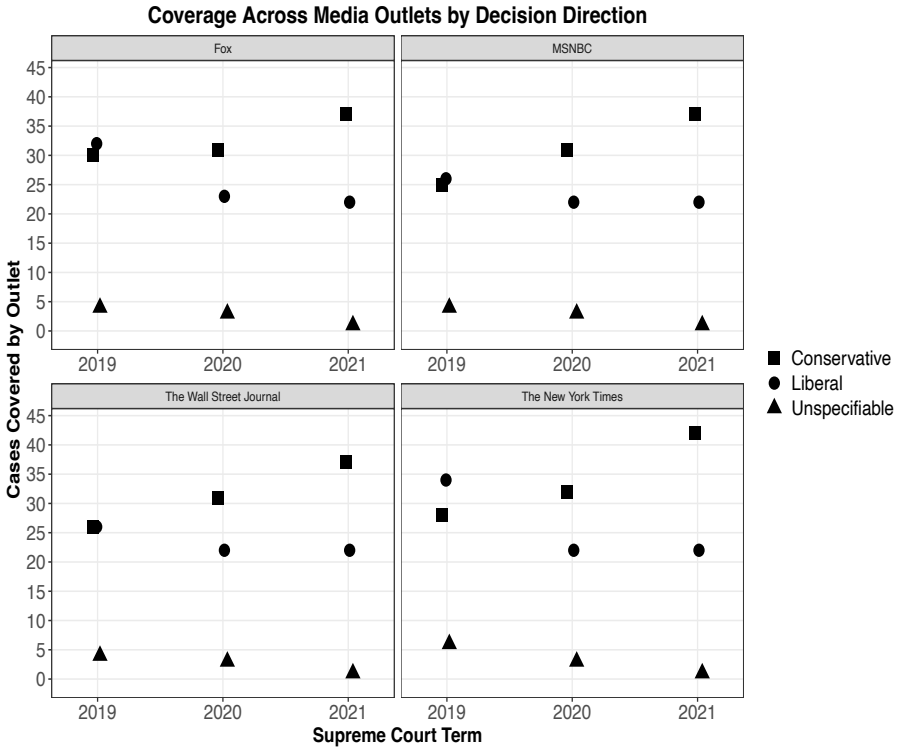

Figure A2: Comparisons in the types of cases covered by decision direction across four media outlets.